

Enigma Standard Terms & Conditions

These Standard Terms apply to all estimates, proposals, scopes of work and services schedules supplied by Enigma Communication Pty Ltd ABN 83 072 426 709 (Enigma), unless replaced by a separate written agreement signed by both parties. They are read together with and incorporate the relevant estimate, proposal or scope which forms an agreement between the parties. No additional Client originating terms may be imposed on Enigma unless agreed in writing. These terms may only be amended if in writing and signed by Enigma and Client.

Nothing in these Terms limits any right or obligation that cannot lawfully be excluded, including under the Australian Consumer Law. GST is additional unless stated otherwise.

1. Acceptance, scope and changes. The Client must approve in writing the relevant estimate, proposal, scope of work or written instruction before Enigma proceeds. Approval may be by signature, email or other written confirmation and confirms acceptance of these Terms. Estimates are valid for 30 days unless stated otherwise. Enigma will provide the services expressly described; anything not included is out of scope. Enigma may reasonably re-cost work where the brief, timing, materials, media, production, supplier costs or assumptions change. Additional work, urgent work, changes after approval, cancellations, postponements, author's corrections beyond two rounds and unavoidable approved or committed third-party costs may be charged separately and require Enigma's written approvals.

2. Authorised instructions and timing. Enigma may rely on instructions, approvals or feedback from anyone who reasonably appears to hold ostensible authority to act for the Client. Timing estimates and production schedules are prepared in good faith. Enigma will use reasonable endeavors to meet agreed timing, but timing may be affected by Client approvals, supplied materials, supplier availability, the acts or omissions of third parties, media bookings, platform requirements and other factors outside Enigma's reasonable control. Client delays or delays outside of Enigma's reasonable control may result in revised timing and additional costs.

3. Termination. Either party may end the engagement on at least 30 days' prior written notice. Enigma may terminate immediately if the Client materially breaches these Terms, fails to pay an overdue invoice, becomes insolvent or requires Enigma to act unlawfully or in breach of applicable platform or supplier terms. On termination, the Client must pay for work performed, materials used, expenses incurred, approved supplier costs, pay for or assume all approved third-party commitments, third party cancellation fees and for all Enigma services including but not limited to proposal, pitch or concept work undertaken up to the termination date (including during the notice period).

4. Ideas, intellectual property and usage rights. Client material remains the Client's property and the Client grants Enigma a license to use it to perform the services. Enigma retains ownership (including copyright) of its concepts, proposals, ideas, strategy, designs, artwork, copy, working files, source files, templates, methodologies, prompts, AI workflows, know-how, know-why and proprietary materials unless expressly agreed otherwise in writing. Subject to full payment, the Client receives a licence to use the final approved deliverables for the purposes, media, territory, duration and channels set out in the client brief, estimate or proposal (as amended from time to time). Concepts, alternative creative routes, pitch materials and preliminary work not paid for by Client with Enigma approval remain Enigma's property (including copyright) and must not be used, copied, shared or given to another supplier without written permission and upon such terms required by Enigma. This Clause survives termination of this agreement.

5. Third-party licences, suppliers and production. The Client must comply with and if set out in a given estimate, proposal, scope of work and/or services schedule pay for any third-party licence and use terms and rights for fonts, stock imagery, talent, photography, music, software, media, platforms (including technology applications or platforms such as AI) and other third-party materials. Unless agreed otherwise, the Client is responsible for compliance and costs of extended, renewed, additional or expanded usage rights. Out-of-pocket expenses, media, production, materials, couriers and third-party costs are additional unless expressly included. Enigma may charge a reasonable administration or handling fee on such expenses. Supplier claims must be made against the supplier, although Enigma will provide reasonable assistance where appropriate at Client's cost. Printed or produced goods are accepted unless defects are notified in writing within seven days of delivery. This Clause survives termination of this agreement.

6. Proofs, approvals and Client responsibilities. The Client is responsible for checking and approving all proofs, artwork, copy, factual claims, pricing, legal statements, packaging, labelling, regulatory requirements and supplied materials before publication, production or distribution. Approval confirms acceptance and legality of content and Client provides Enigma with a warranty in this regard. Post-approval errors, omissions or changes may incur additional charges. The Client warrants that supplied materials, data, claims, pricing, instructions and approvals are accurate, complete, lawful, not misleading or defamatory, and do not infringe third-party rights (including copyright) or breach any obligations of confidence. Unless expressly engaged in writing at Client's cost, Enigma does not provide legal, regulatory, industry-code, product, packaging, labelling, therapeutic, financial services, privacy or platform advice or compliance reviews. The Client indemnifies and forever holds Enigma harmless against claims, demands or losses (Client or third party) arising from Client material, instructions, approvals, use of deliverables or breach of these Terms. This Clause survives termination of this agreement.

7. Payment, disputes and overdue accounts. Enigma may invoice monthly for work in progress, completed work, expenses, media and third-party costs. Payment is due within 30 days of invoice unless agreed otherwise, time and amount of payment being of the essence. Enigma may require a 50% deposit before production begins or supplier commitments are made, and media may be payable in advance.

Invoice disputes must be notified in writing to Enigma, including by email to the client manager, with reasons within 7 days of receipt; undisputed amounts remain payable by the due date. If invoices are overdue, Enigma may pause or withhold work, media placements, materials or deliverables. Unless waived by Enigma on a case by case basis, overdue amounts will attract interest (calculated daily) at the prevailing pre-judgment interest rate prescribed by the Supreme Court of New South Wales on and from the date the payment becomes due, and further recovery costs, lost rebates or commissions, supplier charges and additional costs caused by late payment may accrue for which the Client acknowledges and agrees that it is responsible to Enigma for. This Clause survives termination of this agreement.

8. AI, confidentiality, privacy and data security. Enigma may use artificial intelligence, automation and similar tools to assist in developing, producing or refining work. If AI is used for work, then Enigma will identify this work to the Client on a case by case basis. Enigma will not intentionally submit Client confidential information into publicly available AI tools without approval and will take commercially reasonable steps to review AI-assisted output before delivery. The Client remains responsible for reviewing, approving and deciding how it uses, modifies, publishes or relies on AI-assisted content and work. Enigma does not warrant that AI-assisted outputs will be unique, copyrightable or free from similarity to third-party material. Each party must keep confidential information confidential, use it only for the engagement, comply with applicable privacy laws, maintain reasonable data and information safeguards and promptly notify the other of any actual or suspected data breach affecting the engagement. This Clause survives termination of this agreement.

9. Subcontractors, exclusivity, archiving and credit. Enigma and the Client are independent contractors; nothing creates a partnership, employment, fiduciary or agency relationship. Enigma may use subcontractors and remains responsible for exercising reasonable care in selecting and managing them. Enigma does not provide services exclusively unless agreed in writing. Enigma may archive working files and take reasonable care retrieving them but is not responsible for files that become corrupted, damaged or unavailable over time. Retrieval may incur a minimum fee of \$180 or such other reasonable fee notified to the Client. Unless expressly agreed, working files, source files and editable files are not included in final deliverables. Subject to confidentiality and written restrictions, Enigma may retain samples or images of completed work for records, to comply with legal obligations concerning document retention, credentials, awards and promotional purposes and may request a credit where appropriate. This Clause survives termination of this agreement

10. Platforms, media owners and digital services. Enigma is not responsible for third-party platform or third party technology outages, policy changes, algorithm changes, account restrictions, media-owner decisions, price changes, reporting changes, performance impacts or any other circumstance caused by or contributed to by factors outside its reasonable control. Campaign performance may be affected by Client inputs, market conditions, media availability, consumer behaviour, platform settings and supplier decisions. Media planning, buying, placement, publishing, distribution or related services are subject to Enigma confirming the work is covered by Enigma's media liability insurance or other fee security to Enigma's satisfaction has been provided in advance. Enigma may require campaign details before commencing and is not required to start, continue or place media work unless the work has been approved for cover by Enigma's media insurer or Enigma has confirmed in writing that it will proceed.

11. Liability, force majeure and governing law. Enigma will provide services with reasonable skill and care. To the maximum extent permitted by law, implied conditions and warranties are excluded. Enigma is not liable for indirect, consequential, special or economic loss, including loss of profit, revenue, opportunity, goodwill, data loss, business interruption or reputation. Enigma's total liability is capped at the fees paid for the relevant services giving rise to the claim, excluding media, third-party costs and disbursements. Where liability cannot lawfully be excluded, Enigma's liability is limited, at Enigma's election, to resupplying the services or paying the cost of resupply. Enigma is not liable for delay or failure caused by events beyond its reasonable control. The Client acknowledges that Enigma has not made any warranties or representations in respect of the success of the services in respect of the Client's business, sales performance, brand awareness generation or commercial performance generally or otherwise the reach, success or conversion (including into sales) of any media, marketing communications channel, marketing or advertising campaign, promotion or advertisement. If any part of these Terms is unenforceable, the remainder continues. These Terms are governed by the laws of New South Wales, Australia and the parties submit to the exclusive jurisdiction of the Courts sitting New South Wales, Australia. This Clause survives termination of this agreement.

Acknowledgement

The above Enigma Standard Terms & Conditions are hereby acknowledged and agreed by the Client:

Name: _____ Position: _____

Company: _____ ABN: _____

Signature: _____ Date: _____